

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: July 30, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Puliyanda vs. Montage Hotels and Resorts, LLC, 24-01398168	<i>Off-calendar.</i>
101	Doe vs. City of Santa Ana, 24-01405644	Defendant City of Santa Ana ("Defendant") moves to compel plaintiff Jane Doe ("Plaintiff") to appear for her deposition. Defendant Uriel Matias's Joinder is GRANTED. Here, Defendant noticed Plaintiff's deposition for January 27, 2025 and agreed to take it off calendar upon Plaintiff's counsel's request to reschedule. The deposition was rescheduled for the mutually agreeable date of October 1,

		2025 but the parties again agreed to postpone the deposition. Defendant thereafter re-noticed the deposition and, upon receiving Plaintiff's objection, asked for available dates several times. Plaintiff's counsel informed Defendant's counsel that Plaintiff would not be produced pursuant to the pending Motion to Be Relieved as Counsel. Defendant has properly noticed Plaintiff's deposition several times and its repeated requests for alternate available dates have gone ignored. Plaintiff has no valid objection upon which her refusal to appear for deposition is based. Thus, the Motion to Compel Deposition is GRANTED. In light of the September 21, 2026 trial date, Plaintiff is ORDERED to appear for deposition within 30 days upon notice of this order. <i>Moving party to give notice.</i>
102	Allen v. Airbnb, Inc., 23-01360634	Defendant Ali Mojaverian ("Defendant Mojaverian") demurs to all eight causes of action in Plaintiffs Victoria Allen and Jeffrey Allen's ("Plaintiffs") First Amended Complaint ("FAC") and moves to strike various allegations stated on information and belief and related to punitive damages. The demurrer and motion to strike are unopposed. Defendant Mojaverian is alleged to own, operate and manage the "second Subject Airbnb" identified in the FAC. (FAC ¶ 9.) As to Defendant Mojaverian, all of the causes of action are tied to the allegation that "[o]n information and belief, prior to Plaintiffs' placement into and occupancy of the second Subject Airbnb, Defendant MOJAVERIAN knew, was on notice, and/or in the exercise of reasonable care should have known that the second Subject Airbnb had bedbug activity and/or a substantial risk of bedbug infestation, and that reasonable inspection and treatment between occupancies was necessary to protect guests from exposure." (FAC ¶¶ 49, 99, 110, 128, 140, 157, 174, 184, 195.) However, elsewhere in the FAC, Plaintiffs allege that "Plaintiffs' personal items were left inside of the second Subject Airbnb in open mesh net bags while Plaintiffs were absent. Plaintiffs were unaware someone would access the Airbnb property when they were absent. Due to the unprofessional cleaning of Plaintiffs' personal items, the personal items were not sanitized as represented by TOWER 17 PROPERTIES & MANAGEMENT LLC and relied upon by Plaintiffs, causing bedbugs to be transferred from the first Subject Airbnb to the second Subject Airbnb." (FAC ¶ 47.) Accordingly, based on Plaintiffs' own pleading, the bedbugs were transferred to Defendant Mojaverian's property (the second Subject Airbnb) via the delivery of Plaintiffs' personal belongings from the first Subject Airbnb. Due to this